

		"affiliated entity" of OneOC in the hiring of Plaintiff and in her agreement to resolve disputes by binding arbitration. (Muffie Decl., ¶ 11.) Further, Plaintiff alleges there was a unity of interest and ownership between Defendants OneOC, OCCISE, RevHub Fund, Erkelens and Shaw. (FAC, ¶¶ 5-7.) Accordingly, all Defendants have met their initial burden. Plaintiff has failed to meet her burden of establishing a defense to enforcement of the Agreement. "The failure to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits." (Rules of Court, Rule 3.1342(b); see also <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"].) This action is STAYED pending completion of arbitration. OSC re Dismissal scheduled for 4/24/2025 is VACATED. Arbitration Status Hearing set for 4/23/2026 at 1:30 PM. The parties are ORDERED to file a status report 5 days prior. Clerk to give notice.
6	Shaw vs. Ford Motor Company 30-2023-01340982-CU-BC-CJC	Defendants Motion to Compel Deposition and Request Monetary Sanctions Off calendar at request of moving party.
7	Edmonson vs. Monarch 30-2023-01346667-CU-PN-CJC	Defendant's Motion to Compel Further Responses to Requests for Production of Documents, Set Two Defendant Michael J. Monarch's Motion to Compel Plaintiff Michelle Edmonson to Further Respond to Defendant Michael J. Monarch's Requests for Production of Documents, Set Two is GRANTED. (Code Civ. Proc., § 2031.310, subd. (a).) Defendant seeks to compel further responses and document production to Request Nos. 26, 27 and 30. Plaintiff has not opposed the motion. Within 30 days, Plaintiff is to provide the following: Request Nos. 26 and 27: Plaintiff is to provide a verified, supplemental response and produce any responsive documents. If any documents have been withheld on the basis of the attorney-client privilege, Plaintiff must produce a privilege log.

		Request No. 30: Plaintiff is to provide a verified, supplement response and produce any responsive documents subject to the redaction of any unrelated transactions on the bank statements. Defendant to give notice.
8	CSU Fullerton Auxiliary Services Corporation vs. Cappuccio 30-2022- 01288782-CU- OR-NJC	Plaintiff's Motion to Tax Costs Plaintiff CSU Fullerton Auxiliary Services Corporation's motion to strike costs from is GRANTED. <u>Item 10: Attorney Fees:</u> Plaintiff moves to strike Defendant's request for \$1,050 in attorney fees on the grounds the Judgment issued by the Court on 12-19-24 did not award fees. Pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10), attorney fees are allowable as costs under section 1032 when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Attorney fees allowable as costs pursuant to contract "shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties." (<i>Id.</i>, subd. (c)(5)(A).) Plaintiff has shown the University Gables Ground Lease ("Lease") provides for the recovery of attorneys' fees by the prevailing party. The Lease provides: "In the event that either Landowner or Homeowner brings suit against the other to enforce its rights under this Ground Lease, the prevailing party shall be entitled to recover from the other reasonable attorney's fees to be fixed by the court." (Opp., Ex. A, ¶ 19.4.) Since the contractual fees are not fixed, a noticed motion is required to recover fees. Defendant has not filed a noticed motion for attorney fees. <u>Item 16: Other:</u> The Other costs Defendant seeks to recover are: (a) trial transcript costs of \$505; and (2) monetary sanctions of \$1,522.50 paid by Defendant to Plaintiff. "[S]ection 1033.5, subdivision (a)(9) provides that transcripts of court proceedings ordered by the court are allowable. Nevertheless, the Legislature expressly prohibited the recovery of costs for transcripts of court proceedings not ordered by the court under subdivision (b)(5)." (<i>Segal v. ASICS Am. Corp.</i> (2022) 12 Cal.5th 651, 666.) Trial transcripts were not ordered by the Court. As to monetary sanctions, Defendant seek to recover \$1,522.50 which she paid to Plaintiff in connection with a Motion to Compel